Simply put, toleration meant that what constituted the ‘Hindu religion’ was determined through the application of a manifestly Christian framework. This blatantly Christian attempt to understand ‘the Hindu religion’ also manifested itself in the coloniser’s understanding of the fundamental tenets or ‘laws’ of Hinduism, leading to the quest for a Moses-like ‘lawgiver’. This quest yielded Manu, the author of the much-reviled Manusmriti. Whether the Manusmriti, or for that matter the Dharmashastras, constituted a religious commandment/law, or a descriptive recordal of customs and practices was never clearly understood by the Christian coloniser since he was incapable of viewing the indigenous society through an indigenous perspective. Therefore, even conceptions of what constituted ‘religious law’ in the ‘Hindu religion’ were introduced through a Christian lens, which significantly affected both the coloniser’s understanding of the native society as well as the colonialised natives’ understanding of their own culture, since the Christian idea of seeking scriptural support for traditions was embraced by the latter. This led to attempts at converting the Hindu system of tradition to ‘religion’ in the Christian sense.

De Roover presents ‘the Hindu reformer’ Raja Rammohun Roy as one the prime examples of those who actively applied the scriptural approach to Hinduism to rid it of its ‘ills’ in the interest of ‘social reform’. Under this approach, Roy treated the Vedas as the Hindu ‘Bible’ and attempted to draw structural parallels between the ‘Hindu religion’ and Christianity. On a related note, in the ensuing discussion on the introduction of English education in Bharat, we shall see that Roy’s views on indigenous education, its pedagogy and its worth were no less colonialised.[8]

In practical terms, the application of the Christian framework to understand what constituted ‘the Hindoo religion’ translated to its ‘essentials’ being distilled. This had the following two consequences that are of patent relevance to contemporary debates surrounding Hinduism, both in society as well as in judicial treatment:

1. The Essential Religious Practices (ERP) test, as applied by the Indian Supreme Court in matters involving protection of religious practices and institutions under Articles 25 and 26 of the Constitution, may be traced to the Christian colonial distinction between essential tenets of a religion and its non-essential aspects; and